

26NWCV00668 26NWCV00668

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Case Number: 26NWCV00668 Hearing Date: August 21, 2026 Dept: P

AYZ INVESTMENT LLC

v. RAYMOND R. & DONNIS H. HOLBROOK TRUST, ET AL.

CASE NO.: 26NWCV00668

HEARING: 08/21/2026 @ 9:30 AM

#15

TENTATIVE ORDER

I.

Plaintiff AYZ Investment LLC's motion to compel nonparty Southern Edison Company's compliance with its deposition subpoena is DENIED without prejudice.

II.

Plaintiff's request for monetary sanctions is DENIED.

Moving party to give notice.

Plaintiff AYZ Investment LLC (Plaintiff) moves to compel nonparty Southern Edison Company (SCE) to comply with its deposition subpoena for production of business records.

Background

On February 24, 2026, Plaintiff filed this breach of contract action against Defendants Raymond R. & Donnis H. Holbrook Trust (Trust or Seller); Dana Robert Holbrook, individually and as Trustee; Donald La; LH Enterprises, Inc.; and Does 1–50 regarding the commercial real property located at 12631 12637 Los Nietos Road, Santa Fe Springs, California (Property). The complaint alleges that Plaintiff and Trust entered into a written Purchase Sale Agreement (PSA) for the sale of the Property under which Trust agreed to maintain the Property in the same condition through closing and disclose any material changes in condition. (Complaint, ¶¶ 14-15.) The complaint alleges that Trust concealed damage and prevented Plaintiff from inspecting the Property after the Property experienced repeated criminal activity during escrow. (Complaint, ¶¶ 17-25.)

The complaint asserts nine causes of action: (1) Breach of Contract; (2) Breach of Express Warranty; (3) Breach of Implied Covenant of Good Faith and Fair Dealing; (4) Fraud – Concealment; (5) Intentional Misrepresentation; (6) Negligent Misrepresentation; (7) Negligence; (8) Violation of Civil Code § 2079; and (9) Declaratory Relief.

Legal Standard

A party can obtain discovery from a nonparty via a deposition subpoena. (Code Civ. Proc., § 2020.010, subd. (b); *Unzipped Apparel, LLC v. Bader* (2007) 156 Cal.App.4th 123, 127.)

Code of Civil Procedure section 1987.1, subdivision (a) provides:

If a subpoena requires the attendance of a witness or the production of books, documents, electronically stored information, or other things before a court, or at the trial of an issue therein, or at the taking of a deposition, the court, upon motion reasonably made by any person described in subdivision (b), or upon the court's own motion after giving counsel notice and an opportunity to be heard, may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.

Discussion

Plaintiff moves to compel SCE's compliance with its deposition subpoena. This motion is unopposed.

Plaintiff states that "[o]n April 8, 2026, the subpoena was personally served upon Southern California Edison at its headquarters located at 2244 Walnut Grove Avenue, Rosemead, California. The statutory witness fee accompanied the subpoena." (Fox Decl., ¶ 8, Exh. B.) The Proof of Service indicates that the party served was "Southern California Edison by serving Robin Chu - Security - Person Most Knowledgeable." (Fox Decl., Exh. B.)

"A deposition subpoena that commands only the production of business records...shall be directed to the custodian of those records or another person qualified to certify the records." (Code Civ. Proc., § 2020.410, subd. (b).) "Any person may serve the subpoena by personal delivery of a copy of it as follows...If the deponent is an organization, to any officer, director, custodian of records, or to any agent or employee authorized by the organization to accept service of a subpoena." (Code Civ. Proc., § 2020.220, subd. (b)(2); see also *Cooley v. Superior Court* (2006) 140 Cal.App.4th 1039, 1044.)

The Court finds the service of the deposition subpoena to be insufficient. Plaintiff does not explain why "Robin Chu" is a custodian of records for SCE or otherwise the correct recipient of service on behalf of SCE. Additionally, Plaintiff's meet and confer letter is generally directed toward "Legal Department / Custodian of Records." (Fox Decl., Exh. C.) There are no facts showing that a custodian of records for SCE was properly served with this deposition subpoena.

Based on the facts presented here, the Court denies this motion on procedural grounds due to insufficient service of the deposition subpoena.

Accordingly, Plaintiff's motion to compel compliance with its deposition subpoena is DENIED without prejudice. Plaintiff's request for monetary sanctions is DENIED.